

Ex.No. 1049/2023

Orders on application filed by the DHR under order 21 rule 35 r/w sec. 151 OF CPC.

The Decree holder has filed present application praying to issue delivery warrant with break open lock with police help.

The decree holder has filed the present petitioner praying for execution of decree in OS.No. 4927/2021 and prayed for delivery of possession of the suit property by issuing delivery warrant. It is to be noted here that vide order dated 21-06-2023, this court after considering the case of the decree holder had issued delivery warrant.

The said delivery warrant was not executed and it was returned with shara by the bailiff stating that, the suit property was locked. As such, the decree holder has filed the present application praying to break open the lock for execution of delivery warrant. Order 21 Rule 35(3) gives power to this court to order for break opening any door or to do any act necessary for putting the decree holder in possession of property. Since

the suit schedule property is locked, breaking open the lock is very much necessary for execution of the decree and to deliver the possession of the suit property to the decree holder. If the order to break open lock with police help is not granted, the decree holder will be put to hardship and very purpose of filing the petition will be defeated. If the order for breaking open of lock is granted by the bailiff only, there is chances that JDR may make galata. As such, I am of the opinion that necessary police help should be granted to the bailiff to execute the warrant. Hence, I am of the opinion that the application can be allowed. Accordingly I proceed to pass the following;

ORDER

Application filed by the DHR under Order 21 Rule 35 R/w Sec. 151 of CPC., is hereby allowed.

Issue delivery warrant with break open lock, with police help if PF paid. Call on 11-10-2023.

LII A.C.C.& S.J., Bengaluru.